

1 AN ACT relating to cremation of dead bodies.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 72.450 is amended to read as follows:

4 (1) **(a)** A coroner who has possession of a dead body or a part thereof shall make a
5 bona fide attempt **of at least thirty (30) days** to notify the spouse, if any, or
6 next of kin of the decedent's death. In the event the coroner is unable to locate
7 the spouse, if any, or next of kin, **or if the spouse or next of kin does not take**
8 **possession of the deceased,** he or she may cause the body to be:

9 **1. ☐Buried or;**

10 **2. Cremated and interred;**

11 **☐at the expense of the fiscal court, consolidated local government, or urban-**
12 **county government, whichever is appropriate.**

13 **(b) The decision between burial or cremation and interment shall be made by**
14 **the fiscal court, consolidated local government, or urban-county**
15 **government that has responsibility for the expense pursuant to this**
16 **subsection.**

17 **(c) If a fiscal court, consolidated local government, or urban-county**
18 **government has responsibility for the expense pursuant to this subsection, it**
19 **shall consult with:**

20 **1. The local county coroner before it makes the decision between burial**
21 **or cremation and interment; and**

22 **2. If the decedent is known to be a member of a religious community,**
23 **any such religious community that has expressed, in writing, a**
24 **willingness to the local county coroner that it will pay for, or otherwise**
25 **provide, the burial expense of the community's members.**

26 (2) In the event the body is buried **or cremated and interred** at public expense, the
27 coroner shall take possession of all money or other property found on or belonging

- 1 to the decedent and shall deliver same to the fiscal court, consolidated local
2 government, or urban-county government, whichever is appropriate. Any money or
3 other property found on the body of the decedent or belonging to him or her shall be
4 delivered by the coroner to the fiscal court, consolidated local government, or
5 urban-county government, whichever is appropriate, to help defray burial **or**
6 **cremation and interment** expenses. Any excess funds shall escheat to such
7 governmental agency one (1) year thereafter.
- 8 (3) In lieu of having an unclaimed body buried **or cremated and interred** at public
9 expense, the coroner may deliver such body or part thereof to a state medical school
10 in accordance with the provisions of KRS 311.300 to 311.350.